

DRAFT FOR REVIEW — NOT SENT

Administrative Appeal of Constructive FOIL Denials

Two requests dated August 4, 2026

Date	September 15, 2026
To	FOIL Appeals Officer, if designated; otherwise Mayor Marc D. Citrin and the Village of Tuxedo Park Board of Trustees, as head, chief executive, or governing body of the agency
Via email	mcitrin@tuxedopark-ny.gov; mlindsay@tuxedopark-ny.gov; jscherer@tuxedopark-ny.gov; jturner@tuxedopark-ny.gov; mtinari@tuxedopark-ny.gov
Copies	Rachel Guido, Records Access Officer; Chief Allen Faust; Village Attorney; New York State Committee on Open Government
From	David McFadden and Robin McFadden, 28 Pepperidge Road, Tuxedo Park, NY 10987
Subject	Administrative appeal of constructive denials of August 4, 2026 Village and Police Department FOIL requests

Dear FOIL Appeals Officer, Mayor Citrin, and Members of the Board of Trustees:

Pursuant to Public Officers Law §89(4)(a), we appeal the Village of Tuxedo Park's constructive denials of two Freedom of Information Law requests submitted on August 4, 2026.¹

This consolidated appeal concerns: (1) the Village administrative request seeking records about the proposed photography/filming law, Chapter 51, comparable photography uses, the boathouse property at 61 Turtle Point Road, and related assessment records; and (2) the Police Department request seeking complaints, calls for service, communications, and enforcement records concerning private-property photography and filming.

Village administrative request

The administrative request was sent on August 4, 2026 to Rachel Guido in her capacity as Village Clerk/Treasurer and Records Access Officer. In a letter dated August 5, Ms. Guido acknowledged receipt and stated that the request was anticipated to be granted or denied, in whole or in part, within 20 business days of that letter.

That stated period expired on or about September 2, 2026. As of the date of this appeal, we have received no responsive records, written denial, written explanation for an additional delay, or new date certain for production. The Village therefore failed to conform to Public Officers Law §89(3)(a), which constitutes a denial under §89(4)(a).

¹New York Public Officers Law §89(4)(a), <https://www.nysenate.gov/legislation/laws/PBO/89>

Police Department request

The Police Department request was sent on August 4, 2026 to Chief Allen Faust at police@tuxedopark-ny.gov, with the Village Records Access Officer copied. The Village therefore had written notice of the request. No acknowledgment, production, written denial, or approximate response date has been received.

Public Officers Law §89(3)(a) requires an agency, within five business days after receipt of a reasonably described written request, to make the record available, deny the request in writing, or furnish a written acknowledgment with a reasonable approximate date for granting or denying the request. Failure to comply constitutes a constructive denial.²

This appeal is being submitted promptly after we received confirmation that the continuing nonresponse may be appealed. To the extent the Village contends that an appeal from the Police Department's nonresponse should have been filed earlier, we request that it accept this appeal as timely because no written denial, acknowledgment, appeal instructions, or identification of an appeals officer was provided, and the nonresponse remains ongoing.

Independent open-government review

On September 15, 2026, Axel Ebermann of the New York Coalition for Open Government reviewed the timeline and wrote:

“Based on the timeline you provided, the Village is now past its deadline on both requests.”

“I would file an appeal now on both requests. There is no reason to wait until Thursday.”

Mr. Ebermann further wrote: “Once the appeal is received, the Village has 10 business days to respond in writing. If it does not, that is another deemed denial and you can consider an Article 78 proceeding.” He also advised requesting rolling production so that readily available records are not withheld while older material is being located. The Coalition's response is advisory and is attached as Exhibit D.

Relief requested

We respectfully request that the appeal recipient:

- Accept this consolidated appeal and reverse both constructive denials;
- Direct the immediate production of all readily available responsive records and require rolling production as additional records are located and reviewed;
- For any withheld or redacted material, identify the record or category and provide the specific statutory basis for withholding, while disclosing all reasonably segregable nonexempt portions;
- For any requested record the Village does not possess or cannot locate after diligent search, provide the certification authorized by Public Officers Law §89(3)(a);

²New York Public Officers Law §89(3)(a) and §89(4)(a),
<https://www.nysenate.gov/legislation/laws/PBO/89>

- Identify a date certain for completing each production and the official responsible for each request;
- Preserve all responsive records, communications, attachments, photographs, videos, electronically stored information, and associated metadata;
- Immediately forward a copy of this appeal and the ensuing determination to the Committee on Open Government, as required by Public Officers Law §89(4)(a); and
- Issue the written appeal determination within 10 business days after receipt, either providing access or fully explaining any continued denial.

New York's official FOIL guidance states that failure to respond within the applicable time, or failure to meet a promised production date without a proper written extension, may constitute a constructive denial. It also states that an appeal recipient must provide access or fully explain a further denial within 10 business days.³

Please confirm receipt of this appeal and identify the person or body responsible for deciding it. This appeal does not narrow either underlying request, waive any right to challenge a final or constructive denial, or consent to further delay.

Respectfully,

David McFadden and Robin McFadden

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Proposed exhibits

- Exhibit A — August 4, 2026 Village Administrative FOIL Request
- Exhibit B — August 4, 2026 Police Records FOIL Request
- Exhibit C — August 5, 2026 Village Clerk/Records Access Officer Acknowledgment
- Exhibit D — September 15, 2026 New York Coalition for Open Government response

Review note: Confirm the Village's formally designated FOIL appeals officer, if any, and all recipient email addresses immediately before sending. Because the matter may proceed to an Article 78 proceeding, legal counsel should review the final appeal and all limitations-period calculations.

³New York State Committee on Open Government, "Explanation of Time Limits for Response," <https://opengovernment.ny.gov/explanation-time-limits-response>